

22STCV00671 22STCV00671

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

22STCV00671

JESUS

MARTINEZ vs CITY OF LOS ANGELES, et al.

August

12, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT CITY OF LOS ANGELES' MOTION FOR SUMMARY JUDGMENT.

RULING:

The Court denies the Motion.

The Court overrules Plaintiff's Evidentiary Objections, filed July 23, 2026, as to numbers 4-5, 7-10, 12, 14-17, 21-22, and 24-28, and otherwise sustains them.

Plaintiff to give notice.

I.

BACKGROUND

On January 6, 2022, JESUS MARTINEZ (Plaintiff) filed a Complaint against CITY OF LOS ANGELES and LOS ANGELES POLICE DEPARTMENT (Defendants), identifying one Cause of Action for, "Retaliation in Violation of Labor Code § 1102.5."

Plaintiff alleges that, on or around August 12, 2020, in retaliation for reporting illegal activity, Plaintiff was removed from his elite position and experienced several other adverse employment actions, including IA investigations, a demotion, a suspension, an administrative transfer, loss of overtime opportunities, loss of promotion opportunities, discipline, loss of pay, reprimands, and a retaliatory work environment. (Complaint, ¶¶ 12-33.)

On February 5, 2026, CITY OF LOS ANGELES (Defendant) filed the Motion for Summary Judgment, on grounds that (1) there are no cognizable adverse employment actions alleged, (2) Plaintiff's disclosure about misconduct of Captain Griffith was not a contributing factor to any adverse actions, and (3) the same employer decision would have been made based on Plaintiff's participation in an officer-involved shooting.

Plaintiff opposes, based on arguments that numerous triable issues exist as to those issues that Defendant raised.

II.

LEGAL STANDARD

"In an employment discrimination case, the employer, as the moving party, has the initial burden

to present admissible evidence showing either that one or more elements of plaintiff's prima facie case is lacking or that the adverse employment action was based upon legitimate, nondiscriminatory factors." (Hicks v. KNTV Television, Inc. (2008) 160 Cal.App.4th 994, 1003. Accord Avila

v. Continental Airlines, Inc.

(2008) 165 Cal.App.4th 1237, 1247.) Where employers present admissible proof that at least one prima facie element is lacking, or that the adverse employment action was based upon nondiscriminatory factors, employers are entitled to summary judgment, unless plaintiffs present admissible evidence showing a triable issue of material fact related to the employers' showing. (Arteaga v. Brink's, Inc. (2008) 163 Cal.App.4th 327, 344. "[M]any employment cases present issues of intent, and motive, and hostile working environment, issues not determinable on paper. Such cases ... are rarely appropriate for disposition on summary judgment...." (Nazir v. United Airlines, Inc. (2009) 178 Cal.App.4th 243, 286.)

Plaintiffs must produce

substantial, responsive evidence that the employer's showing was untrue or pretextual. (Addy v. Bliss & Glennon

(1996) 44 Cal.App.4th 205, 215.) "[E]vidence that the employer's claimed reason is false—such as that it conflicts with other evidence, or appears to have been contrived after the fact—will tend to suggest that the employer seeks to conceal the real reason for its actions, and this in turn may support an inference that the real reason was unlawful." (Mamou v. Trendwest Resorts, Inc. (2008) 165 Cal.App.4th 686, 715.)

The burden of

establishing a prima facie case of discrimination is fairly minimal, such that the temporal proximity between employees' protected activities, and a subsequent adverse action, may satisfy the causation requirement. (Arteaga v. Brink's, Inc. (2008) 163

Cal.App.4th 327, 353.) "A plaintiff can satisfy his or her initial burden under the test by producing evidence of nothing more than the employer's knowledge that the employee engaged in protected activities and the proximity in time between the protected action and the allegedly retaliatory employment decision." (McRae v. Dept. of Corrections

and Rehab. (2006) 142 Cal.App.4th 377, 388.) The element of causation may be based upon inferences from circumstantial evidence, including employer's knowledge of the employee's protected activity, and the time between the protected act and the employment decision. (Morgan

v. Regents of Univ. of Cal. (2000) 88 Cal.App.4th 52, 69-70.) Employment termination only a few months after employees' protected activities can

circumstantially evidence causation as to retaliation claims. (Flait v. No. Amer. Watch Corp. (1992) 3

Cal.App.4th 467, 478.)

“[W]hen an employment decision is influenced by several people, “ ‘a decision maker's ignorance does not “ ‘categorically shield the employer from liability if other substantial contributors to the decision bore the requisite animus....” ’ ” (Avila v. Continental Airlines, Inc. (2008) 165 Cal.App.4th 1237, 1251. Accord Reeves v. Safeway Stores, Inc. (2004) 121 Cal.App.4th 95, 109.) “[S]howing that a significant participant in an employment decision exhibited discriminatory animus is enough to raise an inference that the employment decision itself was discriminatory, even absent evidence that others in the process harbored such animus.” (DeJung v. Superior Court (2008) 169 Cal.App.4th 533, 551.)

III.

ANALYSIS

Defendant summarizes the arguments, as follows:

“First, Plaintiff’s claims fail because he alleges several non-cognizable adverse actions. He alleges ‘adverse actions’ that are not cognizable under § 1102.5. Second, his disclosure about Griffith was not a ‘contributing factor’ to any adverse action. The record contains no evidence that Plaintiff ever suffered an adverse action because of his disclosure. His belief that he was retaliated against is entirely speculative. Lastly, the clear and convincing evidence confirms that Plaintiff would still have received the same treatment for legitimate and independent reasons, i.e., his participation in an officer-involved shooting.”

(Motion, 1:8-14.)

Plaintiff counterargues that there are disputes as to the above-referenced issues, including the following facts:

1.

Decision-makers

were not ignorant of Plaintiff's disclosure. Defendant's claims are contradicted by DC Scott who testified that since Brockway never told DC Scott about Martinez's complaint, she never told Brockway that what Griffith allegedly did was not misconduct or that a complaint was not warranted and the matter did not need to be investigated.

2.

Brockway

testified that Griffith knew of Martinez/Davila's complaint, because Brockway confronted Griffith within days of the April 24, 2020 incident, and details of the conversation clearly show that Martinez complained about Griffith.

3.

Plaintiff

would not have been disciplined the same absent the protected disclosure. Chief Moore deviated from the chain of command's recommendation and imposed a uniquely harsh penalty on Martinez than other officers/supervisors, despite all engaging in the alleged acts.

4.

Moore

admitted that his disciplinary decision was only as good as the information on which it was based and conceded the core facts he relied on for discipline-- that Martinez ignored advance radio warnings of armed suspects and that Martinez shot an unarmed man were false.

5.

The timing

between knowledge of Plaintiff's disclosure and adverse actions infers causation.

6.

Plaintiff

suffered adverse actions including lost promotion opportunities.

The

elements of the Cause of Action for Retaliation under Labor Code section 1102.5, subdivision (b) (Whistleblowing), are the following:

Retaliation against an employee's

protected activity;

that was a contributing factor for causing
an adverse employment action.

(Lawson v. PPG Architectural Finishes, Inc.

(2022) 12 Cal.5th 703, 718 [citing

Lab. C. § 1102.6 as burden of proof, and holding retaliation against employees'

protected activities must have been a contributing factor to the adverse

employment action]; *ibid.*, p. 712 ["employer bears 'the burden of proof

to demonstrate by clear and convincing evidence' that the alleged adverse

employment action would have occurred 'for legitimate, independent reasons'

even if the employee had not engaged in protected whistleblowing activities."].

See also *Francis v. City of Los Angeles* (2022) 81 Cal.App.5th 532,

540–541 ["To prove a claim of retaliation under this statute [Labor Code

section 1102.5], the plaintiff 'must demonstrate that he or she has been

subjected to an adverse employment action that materially affects the terms,

conditions, or privileges of employment.' "]; *Ververka v. Dep't of Veterans*

Affs. (2024) 102 Cal.App.5th 162, 176 [an employer's same-decision defense

that is not pretext could bar a whistleblower claim].)

What

constitutes an adverse employment action is not susceptible to a mathematically

precise test, but is one that materially affects terms and conditions of

employment, considering the complainant's collective allegations and the

totality-of-the-circumstances. (*Brown v. Los Angeles Unified Sch. Dist.*

(2021) 60 Cal.App.5th 1092, 1106.) In determining whether there was an adverse

employment action to show discrimination or retaliation, courts look at the

totality of circumstances and not just at each isolated act. (*Yanowitz v. L'Oreal USA, Inc.* (2005)

36 Cal.4th 1028, 1055 ["we need not and do not decide whether each alleged

retaliatory act constitutes an adverse employment action in and of itself."]). See also *Taylor v. City of Los Angeles Dept. of Water & Power* (2006) 144

Cal.App.4th 1216, 1231, disapproved on

other grounds by *Jones v. The*

Lodge at Torrey Pines Partnership (2008) 42 Cal.4th 1158, 1174.) Adverse

employment actions materially affect terms, conditions, or privileges of

employment caused by actions reasonably likely to adversely and materially

affect an employee's job performance or opportunity for advancement, such as

hiring, firing, failing to promote, adverse job assigning, significantly

changing compensation or benefits, or disciplining. (*Doe v. Dep't of Corr. & Rehab.* (2019) 43 Cal.App.5th 721, 734.)

Even a lateral transfer can constitute an adverse employment action as to retaliation claims, where the employment actions are reasonably likely to adversely and materially affect job performance or opportunities for advancement in one's career, and the test must be interpreted liberally with a reasonable appreciation of workplace realities. (*Patten v. Grant Joint Union High School Dist.* (2005) 134 Cal.App.4th 1378, 1389-1390, disapproved on other grounds by *Lawson v. PPG Architectural Finishes, Inc.* (2022) 12 Cal.5th 703, 718.) Lateral transfers, suspensions, assignments without training, and a series of subtle discriminatory acts may constitute an adverse employment action in support of a claim of discrimination. (*Horsford v. Board of Trustees of California State Etc.* (2005) 132 Cal.App.4th 359, 374.) Adverse employment actions can include demotions, reassignments, refusals to promote, unwarranted evaluations, tolerating harassment by coworkers, reprimands and suspensions. (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1061.) Examples of adverse employment actions "include discharge, demotions, refusal to hire, nonrenewal of contracts, and failure to promote." (*Wilson v. Murillo* (2008) 163 Cal.App.4th 1124, 1135.) A transfer to a less-preferred position alone would not constitute an adverse employment action, so long as the employee receives equivalent pay, benefits and promotional opportunities, and experiences no hostile environment. (*Malais v. L. A. City Fire Dept.* (2007) 150 Cal. App.4th 350, 357-358.)

Preliminarily, the Court does not consider the Reply declaration of Ha Nguyen, filed July 31, 2026, as to Defendant's burden of proof. "The [summary judgment] reply shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers." (Code Civ. Proc., § 437c, subd. (a)(4).) Courts cannot consider moving parties' new evidence filed for the first time after the opposition to a summary judgment or adjudication motion has been filed, without first considering opposing parties' due-process rights, or allowing a continuance for a supplemental opposition. (E.g., *Wall Street Network, Ltd. v. N. Y. Times Co.* (2008) 164 Cal.App.4th 1171, 1183, 1191, fn. 11; *Plenger v. Alza Corp.* (1992) 11 Cal.App.4th 349, 362.)

As for the merits, the Court determines that there are triable issues of material fact as to all of the issues raised, involving whether retaliation against Plaintiff's

protected whistleblowing was a contributing factor to adverse employment actions, and whether the actions would have occurred in any event for legitimate and independent reasons. (See, e.g., Moving and Opposing Separate Statements, fact numbers 12 (same-decision pretext), 16 (adverse actions including demotion), 23 (pretext inferred by disproportionate discipline), 27 (multiple decision-makers, not only ignorant ones), 28 (extent of knowledge of Plaintiff's disclosure), 29 (adverse actions, including lost promotional opportunities); Plaintiff's additional fact numbers 17-18 (discriminatory animus), 33-39 (temporal proximity between disclosure and employer adversities), 54 (decision-maker knowledge of protected disclosure), 65-66 (same-decision defense disputed by disproportionate disciplining), 75-76 (inconsistent explanations for disciplining, inferring pretext), 83-85 (inconclusive investigation as to the officer-involved shooter's identity), 86-90 (decision-making participants' knowledge); and, proof referenced thereat.)

IV.

CONCLUSION

Accordingly, the Court denies
the Motion, for reasons set forth herein.